

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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SAMUEL MITCHELL

Index No.:
801714/2021E

Plaintiff,

-against-

**AMENDED
COMPLAINT**

CITY OF NEW YORK,
DET. KOREY NOAK,
DET MICHAEL MUNDY,
JOHN DOES 3-6,

Defendants.

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The plaintiff, *SAMUEL MITCHELL* by his attorney, **ERIC LEVY, ESQ.**,
complaining of the defendants respectfully amends the pleadings pursuant to CPLR sec.
3025 (a) and alleges, upon information and belief, as follows:

Incident 1

1. Defendant previously unidentified as John Doe 1 is hereby identified as
DET. KOREY NOAK (hereinafter **NOAK**).
2. Defendant previously unidentified as John Doe 2 is hereby identified as
DET. MICHAEL MUNDY (hereinafter **MUNDY**).
3. Defendants **NOAK, MUNDY AND JOHN DOE 3** are/were NYPD officers
at the time of the incident assigned to NARCB BX working out of the 40th precinct.

4. On October 4, 2015, plaintiff **SAMUEL MITCHELL** was arrested and seized by **NOAK, MUNDY AND JOHN DOE 3**. Plaintiff **SAMUEL MITCHELL** lives 465 East 140th Street in the Bronx, New York.

5. On October 4, 2015, around 1:15 AM., **MITCHELL** left his home with a friend and went to a grocery store.

6. The grocery store was down the block from Plaintiffs' residence.

7. As plaintiff **MITCHELL** was about to enter the grocery store, he was approached by an individual who turned out to be the **JOHN DOE 3** defendant.

8. At that time, **NOAK and MUNDY** grabbed plaintiff and threw him up against the wall.

9. Plaintiff **MITCHELL** stated that he had done nothing wrong, but defendants did not listen to him or explain why they threw him up against the wall.

10. Defendants pointed their guns at plaintiff, searched through his pockets and under his clothes, recovered nothing evidentiary in nature, then handcuffed and arrested him, even though he had committed no crime and dragged to the 40th Pct. where he was strip-searched.

11. **MITCHELL** was held in jail for more than 2 days before the Court released him on his own recognizance.

12. **MITCHELL** had to appear in court more than TWENTY-EIGHT (28) times before the false charges against him were dismissed.

Incident 2

13. Defendants **JOHN DOES 4-6** are/were NYPD officers at the time of the incident on February 2, 2016, assigned to the 40th precinct.

14. On February 2, 2016, plaintiff **SAMUEL MITCHELL** was arrested and seized by **JOHN DOES 4-6** inside the 40th pct.

15. On February 2, 2016, **MITCHELL** while inside the 40th pct. stated that he had done nothing wrong, but defendants did not listen to him or explain why they were arresting him.

16. Defendants searched through his pockets and under his clothes, recovered nothing evidentiary in nature, then arrested him for allegedly committing a robbery, even though he had committed no crime; plaintiff was never put in a lineup nor was any other identification procedure done.

17. **MITCHELL** was held in jail for more than 2 days before the Court released him on his own recognizance.

18. **MITCHELL** had to appear in court more than TWENTY (20) times before the false charges against him were dismissed.

19. Defendant **CITY OF NEW YORK ("CITY")** is a municipal corporation who oversees the NYPD.

AS AND FOR A FIRST CAUSE OF ACTION
(False Arrest/Seizure under 42 U.S.C. 1983)

20. Plaintiffs repeat and reallege all of the foregoing paragraphs as if fully set forth herein.

21. As to October 4, 2015 incident, defendants **NOAK, MUNDY AND JOHN DOE 3** arrested plaintiff **MITCHELL** on false charges. They strip-searched him and held

him for 2 days without probable cause. As a result of defendants' conduct plaintiffs suffered constitutional injuries.

AS AND FOR A SECOND CAUSE OF ACTION
(False Arrest/Seizure under 42 U.S.C. 1983)

22. Plaintiffs repeat and reallege all of the foregoing paragraphs as if fully set forth herein.

23. As to February 2, 2016 incident, defendants ***JOHN DOES 4-6*** arrested plaintiff ***MITCHELL*** on false charges. They held him for 2 days without probable cause. As a result of defendants' conduct plaintiffs suffered constitutional injuries.

AS AND FOR A THIRD CAUSE OF ACTION
(Malicious Prosecution/Denial of Fair Trial under 42 U.S.C. 1983)

24. Plaintiffs repeat and reallege all of the foregoing paragraphs as if fully set forth herein.

25. Defendants ***NOAK, MUNDY AND JOHN DOE 3*** falsified police documents and initiated criminal proceedings against the plaintiff ***MITCHELL***.

26. Defendants ***NOAK, MUNDY AND JOHN DOE 3*** knew that by forwarding the police documents to the DA's office, plaintiff would be prosecuted. They acted with malice because they did not have probable cause to even arrest plaintiff. They also falsified documents claiming plaintiff had sold drugs. All the criminal charges against the plaintiff were dismissed in his favor. ***MITCHELL*** had to appear before the criminal court on at least 28 times before the false charges were dismissed on January 24, 2018.

27. As a result of defendants' conduct plaintiff suffered constitutional injuries.

AS AND FOR A FOURTH CAUSE OF ACTION

(Malicious Prosecution/Denial of Fair Trial under 42 U.S.C. 1983)

28. Plaintiffs repeat and reallege all of the foregoing paragraphs as if fully set forth herein.

29. Defendants ***JOHN DOES 4-6*** falsified police documents and initiated criminal proceedings against the plaintiff ***MITCHELL***.

30. Defendants ***JOHN DOES 4-6*** knew that by forwarding the police documents to the DA's office, plaintiff would be prosecuted. They acted with malice because they did not have probable cause to even arrest plaintiff. They also falsified documents claiming plaintiff had sold drugs. All the criminal charges against the plaintiff were dismissed in his favor. ***MITCHELL*** had to appear before the criminal court on at least 20 times before the false charges were dismissed on November 30, 2018.

31. As a result of defendants' conduct plaintiff suffered constitutional injuries.

AS AND FOR A FIFTH CAUSE OF ACTION

(Municipal Liability against the CITY)

32. Plaintiff repeats and realleges all of the foregoing paragraphs as if fully set forth herein.

33. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

34. The aforementioned customs, usages, and practices of the *CITY* included, but were not limited to, arresting, assaulting individuals suspected of crimes without due process. In addition, the *CITY* engaged in a custom or practice of inadequate screening, hiring, retaining, training, disciplining and supervising its employees, which was the moving force behind the violation of Plaintiff's rights as described herein.

35. In addition, the Defendant's superior officers whose duty it was to review and screen all arrests for propriety upon presentation by the officer seeking to make an arrest routinely ratified such arrests without questioning the facts underlying same.

36. Furthermore, the individual defendants have a practice and custom of ignoring the mandates of the patrol guide, which requires them to prepare several forms before, and after an arrest is made. As a result of the failure of the *CITY* to properly recruit, screen, train, discipline, and supervise its officers, including the individual Defendants, Defendants have tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein

37. Furthermore, police officers from the NYPD retain old photographs of arrestees and use them illegally to show victims of crime, in order to close out cases even when the photographs do not represent the actual perpetrator of the crime. These photographs and other documents are supposed to be sealed pursuant to Section 160.50 of the NYS penal Code. Yet, on numerous occasions, the NYPD officers retain them and use them for unlawful purposes. The NYPD has not mechanism set to train officers on how to destroy files, photographs and criminal court and arrest paperwork after a case has been

dismissed and sealed. This lack of inaction is a *defacto* policy that led to violation of plaintiff's constitutional rights.

WHEREFORE, Plaintiffs demand judgment and pray for the following relief, jointly and severally, against the defendants:

(A) Full and fair compensatory damages in an amount Five Hundred Thousand Dollars for each and every cause of action for each plaintiff against defendants (individually or collectively) or as determined by a jury:

(B) Punitive damages in an amount to be determined by a jury:

(C) Reasonable attorney's fees and the costs, expenses and disbursements of the action;
and

(D) Such other and further relief as appears just and proper.

Dated: New York, New York
February 16, 2021

Respectfully,

/s/
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